



File No.: EXP202304094

SANCTIONING PROCEDURE RESOLUTION

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on February 23, 2023. The complaint is directed against TELEFÓNICA SERVICIOS INTEGRALES DE DISTRIBUCIÓN, S.A. with NIF A82261280 (hereinafter, ZELERIS). The reasons for the complaint are as follows:

The complainant states that they were the intended recipient of a package whose delivery management corresponded to ZELERIS and that it delivered the aforementioned package, which contained a mobile device, that was only to be delivered to the complainant, to (...) of the property where the complainant's residence is located, all without their consent, making their personal data available to a third party.

The complainant provides a copy of the telephone contract of which they are the holder, messages sent by the defendant regarding the management of the delivery of the package with the mobile device, dated September 13 and 23, and a copy of the delivery receipt of the package, dated September 23, 2022, which includes a signature not belonging to the complainant and, among other data, the complainant's ID number.

The complainant resides (as stated in the telephone contract) at ***ADDRESS.1; the delivery receipt states ***ADDRESS.2.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGGD), the complaint was forwarded to ZELERIS for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on March 30, 2023, as stated in the acknowledgment of receipt in the file.

On April 28, 2023, this Agency received a written response indicating the following:

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They attach, as Annex Document No. 1, the internal operations circular dated February 21, 2022, designed and implemented by the security team of ZELERIS, which has been delivered to all affected employees, detailing the specific procedures to be followed by them for the type of delivery that affects this specific complaint, which is internally referred to as "delivery to the holder," as well as the consequences that may arise from a possible non-compliance.

ZELERIS informs that, once the file was received, it proceeded to internally analyze the complaint; for this purpose, among other things, the system that retains the delivery of the order subject to the complaint was reviewed.

In this case, they report that ZELERIS is aware that this delivery was carried out correctly at the delivery location; that the person responsible for making the delivery did so following the implemented procedures, with no incidents to report.

From ZELERIS, and in light of what occurred in this matter, the internal work team responsible for the distribution of the drivers who make the deliveries has been informed to carry out the necessary reminders regarding the obligation to work according to procedures.

On the other hand, the internal operational procedures regarding deliveries to the holder have also been reinforced.

THIRD: On May 9, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: According to the report obtained from the AXESOR tool, the entity TELEFÓNICA SERVICIOS INTEGRALES DE DISTRIBUCIÓN, S.A. is a company established in 1999, with a sales volume of (...) euros in 2022.

FIFTH: On February 9, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the defendant, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of the provisions of Articles 5.1.f) and 32 of the GDPR, classified, respectively, in Articles 83.5 and 83.4 of the GDPR.

SIXTH: On February 20, 2024, ZELERIS submitted a written request for an extension of the deadline to present allegations.

SEVENTH: On February 22, 2024, the instructing body of the procedure agreed to extend the requested deadline by a maximum of five days, in accordance with the provisions of Article 32.1 of Law 39/2015, of October 1.

The aforementioned agreement was notified to ZELERIS on February 26, 2024, as stated in the acknowledgment of receipt in the file.

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EIGHTH: On March 1, 2024, this Agency received a written submission from ZELERIS in which it presented allegations.

NINTH: On November 6, 2024, the instructing body of the procedure agreed to open a period for the practice of evidence, considering the complaint filed and its documentation, the documents obtained and generated during the admission phase of the complaint, the allegations to the initiation agreement of the present sanctioning procedure, and the documentation accompanying them as incorporated for evidentiary purposes.

On the same day, this Agency required ZELERIS to submit the following information within 10 business days:

- Provide a copy of the label that was printed on the package delivered to the claimant, or, failing that, a copy of the label model that is attached to the packages delivered by the company.
- Provide a copy of the service provision contract for transportation and handling that it has signed with TELEFÓNICA DE ESPAÑA S.A.U.

On November 21, 2024, ZELERIS submitted a written response to this Agency, along with the requested documentation.

TENTH: On December 20, 2024, a resolution proposal was formulated, in which responses were given to the allegations made, proposing:

- That the Director of the Spanish Agency for Data Protection impose a sanction on TELEFÓNICA SERVICIOS INTEGRALES DE DISTRIBUCIÓN, S.A., with NIF A82261280, for an infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of said regulation, with an administrative fine of 70,000 euros.
- That the Director of the Spanish Agency for Data Protection archive the infringement of Article 32 of the GDPR against TELEFÓNICA SERVICIOS INTEGRALES DE DISTRIBUCIÓN, S.A., with NIF A82261280, classified under Article 83.4 of the GDPR.
- That the Director of the Spanish Agency for Data Protection order TELEFÓNICA SERVICIOS INTEGRALES DE DISTRIBUCIÓN, S.A., with NIF A82261280, to demonstrate, in accordance with Article 58.2.d) of the GDPR, within 6 months, the adoption of appropriate measures in accordance with the GDPR, so that its delivery personnel do not violate the established protocols and do not deliver a package to an address different from that of the intended recipient of the package in question, nor

make deliveries without reliably verifying the identity of the person to whom the package is delivered. ELEVENTH: On December 24, 2024, a written request was submitted seeking an extension of the deadline to present allegations, which was granted on January 9, 2025.

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TWELFTH: On January 16, 2025, this Agency received a written submission from ZELERIS in which it presented allegations. In these allegations, in summary, it stated that:

ZELERIS reiterates the allegations presented against the initiation agreement, considering that this Agency has not taken into account all the circumstances surrounding the facts that are intended to be sanctioned, and that the allegations made by ZELERIS have not been disproven.

It adds that ZELERIS has not committed the typical infringement attributed to it by this Agency, and that it does have security measures, as appreciated by the Agency.

I. ABOUT THE FACTS THAT MOTIVATE THE INITIATION OF THE PRESENT SANCTIONING PROCEDURE.

First. Non-existence of the commission of the infringement. Disagreement with the resolution proposal. ZELERIS states that this Agency questions in the resolution proposal both the due diligence at the time of delivering the package that is the subject of this file, as well as the personal data contained in the label of the package to be delivered, considering the data of the claimant's phone number as excessive, which would have constituted a violation of the principle of confidentiality.

a). Regarding due diligence in deliveries.

ZELERIS wishes to state that the fact that has motivated this sanctioning procedure is an isolated case originating from the fact that the address provided by TELEFÓNICA DE ESPAÑA, S.A.U., or TELEFÓNICA was incorrect, such that this data would not have been collected by ZELERIS.

Thus, ZELERIS, despite the error and with the firm conviction that the address was correct, made the delivery to the address it had, and wishes to add that the claimant did not respond to the SMS text message that was sent to confirm their data. Therefore, ZELERIS wants to emphasize the client's own responsibility, to understand that their action cannot be considered as "lack of due diligence."

b). Regarding security measures, updated operations, and reinforcement for employees and suppliers. ZELERIS wishes to state that it has appropriate technical and organizational measures regarding the processing of personal data being carried out, since the Agency has proposed the archiving of the infringement of Article 32.

It understands that these measures are appropriate and guarantee an adequate level of security relative to the risk, taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of

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variable probability and severity for the rights and freedoms of individuals.

ZELERIS wishes to highlight the following measures it has implemented, among others:

i) the continuous updating of the internal operations carried out by the security and operations team, which is communicated to all employees through circulars and is attached to the written allegations regarding the resolution proposal.

ii) inclusion of clauses in the contracts for the distribution of parcels and messaging with suppliers.

iii) once the incident was detected, ZELERIS informed the collaborating company that had provided this service to identify the worker who performed this service and to reprimand them.

ZELERIS wants to emphasize that this action would demonstrate that it acted with due diligence.

c) obligation of means and not of results.

ZELERIS understands that, with the resolution proposal, this Agency is imposing an objective obligation of results, and that its security measures must be infallible, based on the outcome of operations that workers or messengers must follow beyond the requirement of means established in Articles 25 and 32 of the GDPR and confirmed by jurisprudence. In this regard, it cites STS 188/2022 of February 15.

ZELERIS considers that, despite the design and implementation of security measures for the execution of shipments, there are occasions when, due to causes not attributable to ZELERIS, it is not possible to follow the established operations, the worker is deceived into not following the operations, or directly, by their own decision, deviates from them.

It also wishes to state that it has never been sanctioned by this Agency since its establishment in 1999, which would demonstrate the due diligence it employs in its activity.

d) volume of deliveries.

In this regard, ZELERIS wishes to state that:

- almost 80% of its shipments are to individuals,
- on the day the incident occurred that led to this sanctioning file, there were 3,063 shipments in the same province, and there was no similar incident.

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Therefore, it understands that the percentage of incidents in proportion to the volume of shipments is very low and would not have caused complaints regarding privacy.

2. Regarding the inclusion of the contact phone number on the label.

ZELERIS wishes to state that the inclusion of the customer's contact phone number on the label does not constitute a breach of the principle of data minimization, as it is a necessary piece of information for the proper provision of the service.

Thus, it wants to make this Agency aware of the necessity for the contact phone number to be included on said label, due to the volume of large clients that commission deliveries, which implies the need to have a large number of subcontractors throughout the national territory, and therefore it is necessary for it to be included, in order to ensure the proper delivery of packages.

a) demands from large clients that have their own labeling system.

ZELERIS states that:

- i) there are clients who automatically upload data into ZELERIS's systems, and ZELERIS only has to print and stick the labels on the package, in such a way that it is the responsible party who determines which data is included on that label.
- ii) there are clients who require, as a contractual obligation, that the messenger contact the final customer by phone, so it is necessary for the messenger to have a contact phone number readily and easily available.
- iii) to resolve incidents in real time and avoid unnecessary returns that negatively affect senders and recipients.

b) Not all collaborators have the same technical means.

Sometimes these collaborating companies do not have "PDAs," and therefore do not have the digitized delivery note with the delivery data, so in case of an emergency, they have no way to contact the customer.

At other times, there is a lack of coverage and connectivity, such that the phone number is extracted from the label immediately.

It insists that the fact that the phone number appears on the label has resulted in deliveries having a high success rate, being completed in less time, and so far there have been no notable complaints regarding data protection that have materialized in the form of sanctions from this Agency.

c) scope of data dissemination.

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ZELERIS indicates that this Agency asserts that the mobile phone contact number has been exposed in the hands of a third party, resulting in a breach of confidentiality, due to two circumstances:

- i) that this data was included on the package label
- ii) that the delivery was made without following the internal delivery protocol to the owner.

ZELERIS insists at this point that the inclusion of the phone number on the label is by no means excessive data, as it is necessary for properly providing the delivery service.

However, it wants to highlight that the possible dissemination of the contact phone number has been very limited, minimal, confined, restricted, and controlled as only a neighbor has had access to it. It understands that it would have been much more serious if the data had been exposed in publicly accessible information sources or on the internet or social media.

d) moment when the event occurs.

ZELERIS wants to state that the events occurred in the year 2022, in such a way that it considers that the existing risks in that year are not the same as those existing today.

It makes this statement so that this Agency is aware that, until a few years ago, the sensitivity regarding a personal data such as this one being exposed is not the same as it is today.

e) corrective measures.

In the last two years, ZELERIS has been implementing changes in the way of working. In this way, it mentions the following measures:

i) implemented: inclusion of (...).

(...).

ii) in the process of implementation:

(...).

(...).

II. ON THE LEGAL GROUNDS.

First. On the alleged infringement committed by ZELERIS: absence of typicality, unlawfulness, and culpability.

ZELERIS reiterates the allegations it presented to the initiation agreement and states that, for a conduct to be reproachable, it must be typical, unlawful, and culpable, and at this point, it understands that the principle of typicality is being violated to the extent that ZELERIS's conduct is not subsumable under the provision whose infringement is imputed.

Thus, ZELERIS understands that the action cannot be typical in that the delivery took place at the address that TELEFONICA had provided, and without the claiming party modifying the data when it was warned by ZELERIS to confirm its delivery data.

Furthermore, it understands that there has been no breach of confidentiality security because the data provided in the order is necessary for the correct provision of the service, as previously stated.

It insists that the data appearing on the package label is the minimum essential, and that the third party does not have access to the delivery note data.

On the other hand, it understands that the conduct cannot be considered unlawful, to the extent that ZELERIS would have acted in good faith and with an exclusive belief of non-culpability, and with the aim of ensuring the correct delivery of the shipments. Thus, it understands that the unlawfulness of the conduct, as a constitutive element of an administrative offense, requires in its formal aspect that there is an opposition between the behavior and the violated norm, so that if the behavior is supported by the legal system, one cannot speak of unlawful conduct.

Finally, ZELERIS wants to state that the element of culpability does not concur, as its conduct reveals an unequivocal will to act in accordance with the law, with the intention of compliance, and the due diligence being unquestionable.

It also wants to state that it is a reiterated doctrine that considers that the guiding principles of criminal law are applicable to sanctioning law, pointing out that one of the main components of the administrative infringement is the element of culpability, which presupposes that the action or omission

must be attributable to its author due to malice, recklessness, negligence, or inexcusable ignorance. At this point, ZELERIS recalls the STC76/90, of April 26, and adds that it is necessary in an administrative procedure to have the confirmation of ZELERIS's culpable intervention, and that, in this case, it has not occurred.

Second. Breach of the principle of proportionality in sanctions.

ZELERIS wants to state that it has already been established that there are no facts that motivate the imputation of the infringement, but, in the event that this Agency does not decide to archive this sanctioning procedure, it understands that the principle of proportionality would also be violated.

To this end, it refers to:

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- The Supreme Court ruling (STS) of June 2, 2003, according to which the principle of proportionality "tends to adjust the sanction, by establishing its specific gradation within the possible margins, to the seriousness of the act constituting the infringement, both in its aspect of unlawfulness and culpability, weighing in its entirety the objective and subjective circumstances that integrate the factual basis for the sanctionable act and, in particular, as results from Article 131.3 of Law 30/92, the intentionality or repetition, the nature of the damages caused, and recidivism."

- The ruling of October 30, 2020, of the contentious-administrative appeal number 948/2018 of the National Court, which recalls that "the margin of appreciation granted to the Administration in imposing sanctions within the legally established limits must be developed by weighing in any case the concurrent circumstances, in order to achieve the necessary and due proportion between the alleged facts and the responsibility required, given that any sanction must be determined in accordance with the entity of the infringement committed and according to a criterion of proportionality in relation to the circumstances of the act. Thus, proportionality constitutes a normative principle that is imposed on the Administration and reduces the scope of its sanctioning powers."

- National and European legislative bodies that have also taken this legal principle into account when configuring data protection regulations, such as recitals 4, 129, and 148, as well as Article 83 of the GDPR.

The reasons of ZELERIS for considering that the principle of proportionality is violated are as follows:

i) This is the first sanctioning file since 1999.

ii) The proportion of the volume of shipments in one year and the number of complaints for violating privacy shows that the security measures implemented are effective.

iii) The exposed data has affected only one person, and it occurred at (...).

iv) ZELERIS has adopted the relevant measures to reduce the risk of data exposure in the event of any incident.

For all these reasons, it understands that the amount of the sanction should be considerably reduced.

Third. On the criteria for the gradation of the sanction.

ZELERIS reiterates its arguments presented in the initiation agreement and expresses its disagreement with the application of the following aggravating factors:

i) The nature, severity, and duration of the infringement, in which they reiterate the arguments presented in the initiation agreement, and furthermore request this Agency to assess all the circumstances presented, as it concerns a specific and isolated error, in which no harm would have been caused to the complaining party, and that the personal data had minimal dissemination.

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ii) Intentionality/negligence. ZELERIS states that it had an attitude that would reveal an unequivocal intention to act in accordance with the law, without the intention of violating the regulation and having,

in any case, a willingness to comply. It adds that it has the necessary and adequate technical measures for the management of shipments to the holder, and that, as has been verified, it was the messenger who decided to deviate from these measures, making it impossible to speak of intentionality in this case.

It adds that the infringing type would already assume, by itself, the culpability element of the negligence being judged, so that, given that there is no additional or greater intensity in the sanctioned conduct, it should not have been taken into account as an aggravating factor for the purposes of imposing the sanction. To support this, it cites the ruling of the National Court of June 1, 2024, which states:

“In the complaint, it is alleged that two aggravating circumstances have been taken into account, which consist of the negligence of the plaintiff in modifying the contract without being certain that the person who called requesting the change of power acted on behalf of the contract holder (art. 83.2.b) RGPD. (EDI. 2016/48900). And the connection of the infringer's activity with the processing of personal data (art. 76.2.b of LO 3/2018 (EDI 2018/128249).

Regarding the proportionality of the sanction, it is understood as the adequacy, according to criteria of justice and equity, between the facts subject to the infringing type and the determination of the applicable sanction, taking into account the intensity of the intervening fault, that is, the degree of intentionality, carelessness, or negligence that the conduct reveals. And, of course, a motivation regarding the judgment of the intensity of the intervening fault is required. This connects with the first of the aggravations discussed.

It is evident that these sanctions can only be imposed if there is fault or negligence; thus, without the existence of the culpability element, the existence of any type of infringement cannot be appreciated. This leads us to consider that such culpability element is immersed in the type of infringement; therefore, this Tribunal understands that as long as excessive intent, or an additional degree of fault in the conduct of the sanctioned party is not demonstrated, accredited, and justified, the fault or negligence must be considered as part of the infringing type without elevating it to the category of aggravation of the sanction. There is no evidence in this case of any intentionality or negligence greater than that of the type that could be taken into consideration to increase the severity of the sanctioned act in either of the two infringements, so this aggravating factor is excluded, resulting in a reduction of the monetary sanction.”

iii) The connection of the infringer's activity in the processing of personal data

ZELERIS understands that this aggravating factor should not be applied to the extent that it would be a specific and exceptional case, which has not generated controversy or sanctions in the area of data protection prior to this file, which would imply assuming that in any type of infringement that might be decided to impose on ZELERIS, this aggravating factor would be considered, and it views this as something.

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disproportionate and lacking in sense, contravening the principles of justice and equity.

It considers that this aggravating factor should be applied when there is a high number of affected data subjects due to the possible infringement, since, otherwise, any company dealing with a massive number of personal data will see its conduct considered aggravated by the Agency. It understands that the European Data Protection Committee also considers this in the Guidelines on the application and imposition of administrative fines under Regulation 2016/679, adopted by the Article 29 Working Party on October 3, 2017, which clearly states that the factors provided for in Article 83.2 of the GDPR must be evaluated in a combined manner, that is, in what is now of interest to us, the number of data subjects along with the possible impact on them.

In this same sense, Recital 75 of the GDPR states that to determine the degree of damage that a possible infringement in data protection may cause, it must be taken into account, among other aspects, “that the processing involves a large amount of personal data and affects a large number of

data subjects.”

On the other hand, ZELERIS understands that the following mitigating factors should have been applied:

a) degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement, to the extent that all requests for information from the Agency would have been responded to.

b) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement, to the extent that no benefit has been obtained from the commission of the infringement, rather the opposite with the possible imposition of a sanction.

ZELERIS understands that, taking into account the circumstances already outlined in this written statement of allegations, this Agency should scale the sanction and set it at its minimum level of €40,001, as this is the first sanctioning file that has been notified to it.

Therefore, it requests this Agency to declare the absence of liability, ordering the filing of the sanctioning file, and subsidiarily, in the event that the filing does not proceed, to reduce the initially proposed sanction by virtue of the mitigating factors provided for in Article 83 of the GDPR.

From the actions carried out in this procedure and from the documentation in the file, the following has been established:

PROVEN FACTS

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FIRST: It is recorded that the complainant was the recipient of a product (mobile terminal) requested from TELEFÓNICA DE ESPAÑA in September 2022.

SECOND: It is recorded that the delivery of the product is carried out by the company ZELERIS, with which TELEFÓNICA MÓVILES ESPAÑA SAU has a contract for the provision of transportation and handling services, which was modified to include the services derived from the marketing of the Movistar Fusión Service with the rental of mobile terminals to end customers. As specified in the contract, three phases were planned for the operations to be carried out by ZELERIS for the new Fusión+ Terminal service. Phase III of the contract begins on August 1, 2021, or in default, the date of completion of the integration process, and includes the verification of the identity of the holder + signature and SMS notice by the transport.

THIRD: It is recorded that the address of the complainant is ***ADDRESS.1, as stated in the complainant's telephone service contract with TELEFÓNICA DE ESPAÑA, S.A.U., dated July 20, 2020, and which is provided by the complainant in their complaint.

FOURTH: It is recorded that the product was only to be delivered to the holder of the fusion, as stated in the text message provided by the complainant, sent by (...).

FIFTH: There is a circular of operations dated February 21, 2022, provided by ZELERIS, which has the subject “reminder DELIVERY TO HOLDER OF TME SHIPMENTS” in which it can be read:

“REMEMBER THE OBLIGATION TO REQUEST IDENTIFICATION AND VERIFICATION OF IDENTITY CARD IN ALL DELIVERIES OF SHIPMENTS AND/OR DELIVERIES MARKED AS 'DELIVERY TO HOLDER'. IN CASE OF NOT BEING ABLE TO IDENTIFY THE HOLDER OF THE SHIPMENT, THE DELIVERY WILL NOT BE MADE.”

SIXTH: It is recorded that the delivery of the product is made at ***ADDRESS.2, as observed in the delivery note provided by the complainant. The delivery note contains the name and surname of the complainant, as well as their phone number and ID number.

SEVENTH: It is recorded that the package label contains the following personal data: name, surname: A.A.A.; postal address: ***ADDRESS.1; and contact phone number of the complainant.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the

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Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), establishes that the Presidency of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, given that TELEFONICA SERVICIOS INTEGRALES DE DISTRIBUCIÓN collects and retains, among others, the following personal data of individuals: name and surname, address, telephone number, ID number, among other processing activities.

Article 4, paragraph 12 of the GDPR broadly defines "personal data security breaches" (hereinafter security breach) as "all breaches of security that lead to the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or to the unauthorized communication or access to such data."

In this case, there is a personal data security breach under the circumstances mentioned above, categorized as a confidentiality breach, due to the improper access to the personal data of the complainant, as a consequence of the delivery of a package that contained, on a label located in a visible part of it, their personal data, consisting of name and surname, and telephone number, to a person living in the same building as the complainant, but on a different floor, and who was not the holder of the fusion line.

In this regard, the complainant has provided a screenshot of the message sent to communicate the shipment, in which it can be observed:

"Hello! Your device is on the way (...) remember that we can only deliver it to the holder of the Fusion."

On the delivery note and on the package label, there is an incorrect address, with all the complainant's data except for the floor letter, and a signature that does not appear to correspond to the signature collected in the telephone contract.

Within the principles of processing provided for in Article 5 of the GDPR, the integrity and confidentiality of personal data are guaranteed in paragraph 1.f) of Article 5 of the GDPR. For its part, the security of personal data is regulated in Article 32 of the GDPR.

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Response to the allegations made regarding the initiation agreement

In response to the allegations presented by the entity being claimed against, the following should be noted:

1. NON-EXISTENCE OF A COMMITMENT OF INFRINGEMENT

a) Regarding the infringement of Article 5.1.f of the GDPR attributed to ZELERIS, it states that the data processing it performs is based on the information provided by TELEFONICA DE ESPAÑA, and it does not have access to the contract that the customer signs with TELEFONICA DE ESPAÑA.

It adds that the data ZELERIS has includes the name and surname of the claimant, address, phone number, and ID number, as can be seen in the document it provides, which it claims is an image of the ZELERIS system where the order made by TELEFÓNICA is generated.

In any case, it emphasizes that the order was delivered to the provided address and that it acted with due diligence, based on the data it had, without any negligence being attributable.

Regarding this statement made by ZELERIS, it is necessary to point out that this Agency considers that due diligence was not exercised, contrary to what ZELERIS claims, since, as stated in the SMS sent to the claimant, which the claimant includes with their complaint, the order could only be delivered to the account holder, which, in this case, was not confirmed in any way, as the order was delivered to a person other than the account holder.

In this regard, the AN in its SAN of June 27, 2024, rec. 102/2022 states: "It is known that one can incur liability for the infringement we are examining both intentionally or maliciously as well as through carelessness, negligence, or even by simple non-compliance (art. 28 of Law 40/2015, of October 1). And it is now appropriate to recall that, as the Supreme Court points out in its Judgment of January 23, 1998, '... although the culpability of the conduct must also be proven, it must be considered in order to assume the corresponding burden that ordinarily the volitional and cognitive elements necessary to appreciate it are part of the proven typical conduct, and that their exclusion requires evidence of the absence of such elements, or in its normative aspect, that the diligence required by the one claiming its non-existence has been employed; it is not enough, in summary, for exculpation against a typically unlawful behavior to invoke the absence of fault.'"

Therefore, in this case, in accordance with what has already been stated, it cannot be understood that ZELERIS acted with due diligence.

ZELERIS also pointed out that the data appearing on the label includes name and surname and address, which are usually the same data that appear in the mailbox of any apartment in a community of neighbors, so it understands that, in no case, would data have been exposed that are not known by the neighbors of the property.

This statement made by ZELERIS would imply assuming that all the data of the claimant included in the shipping labels are listed in the mailbox of their homeowners' community; however, this is not true if one considers that the labels on the packages contain more personal data of the recipients of the shipments than the usual data collected in those mailboxes, in this case, the contact phone number of the claimant is included.

ZELERIS adds that the delivery note would indeed contain more personal data, but this document is not provided to the person collecting the shipment, so the third party could not view this document.

In this regard, it should be noted that in the present sanctioning procedure, there is no reference to whether the person who collected the package had access to the data on the delivery note, but rather what is being questioned is the fact that the delivery note included an address, which has already been proven to be incorrect, yet the package was delivered to that address, without indicating who received the shipment, since the data listed are those of the claimant, who precisely claimed that the package had not been delivered to them, thus constituting a violation of the principle of confidentiality, as the personal data of the claimant included on the label were exposed to third parties.

Finally, it wishes to express that there is a lack of diligence on the part of the claimant when confirming their shipping address, as they were sent an SMS on September 13, 2023, informing them that their order could not be delivered, and they were asked to confirm the delivery details but did not do so.

Regarding this issue, it is necessary to point out that the infringement attributed to ZELERIS is precisely that it did not follow its own instructions when proceeding with the delivery of the shipment without verifying that it was the intended recipient and that it should have been the account holder.

b) ZELERIS states that it conducts studies on security measures appropriate to the risk and that it has a specific operational procedure implemented for all its workers regarding this type of delivery, and it has already provided a circular outlining these measures, which included, among others:

- The worker responsible for the delivery is required to identify and verify the identity of all deliveries.

- Deliveries cannot be made to an address different from that indicated in the shipment.
- Penalties for serious breaches of the required service.

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In relation to these statements, it has been established in the file that ZELERIS did not follow the security measures it had in place, as it proceeded to deliver the shipment without verifying that the person collecting said shipment was the holder of the merger contract and the person who was supposed to collect it. Consequently, this resulted in a breach of confidentiality, to the extent that their personal data, particularly their contact phone number, was exposed to a third party.

That is to say, it is understood that ZELERIS had measures in place, but did not act with sufficient diligence, having delivered the shipment to a person who was not the holder of the merger contract and without verifying who the person receiving the shipment was, given that the delivery note does not include the details of the person who collected the shipment, but only the details of the claimant, when it appears to be established that the claimant was not the one who collected said shipment, since it has also been established throughout this sanctioning procedure that the address was incorrect.

Furthermore, it should be noted that the circular dated February 21, 2022, expressly states that “in the event that it is not possible to identify the holder of the shipment, delivery will not be made” and that it is stated in the service provision contract submitted by ZELERIS to the procedure that the identity must be verified.

ZELERIS adds, at this point, that as a postal operator, it must comply with the obligations of Law 43/2010, of December 30, on the universal postal service, user rights, and the postal market.

In this regard, it states that Article 24 of this Law establishes that:

“it will seek to deliver those postal shipments whose address, even if incomplete, allows for the identification of the recipient” (...) “Shipments, depending on the type in question, will be delivered to the recipient or to the person authorized by them, or will be deposited in postal lockers or in individual or collective home mailboxes. Any person present at the recipient's home who identifies themselves and takes charge of the shipments will be considered authorized by the recipient to receive the shipments at their home, unless there is an express written opposition from the recipient addressed to the designated operator providing the universal postal service.”

And therefore, it states that the law allows any person present at the home who identifies themselves to be authorized to collect the shipment, and in this case, the delivery took place at the address that ZELERIS had as the delivery address, the courier identified the person present at the address, that person signed the delivery note, and therefore the delivery was made, which is why the signature would not match.

However, such assertions are not substantiated in this case; it must be taken into account that the regulations referred to by ZELERIS require:

- that shipments be delivered to the recipient or to the person authorized by them.

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- it will be considered authorized by the recipient to receive shipments at their address by the person present there and
- they must provide their identity and take charge of the shipment
- unless there is an express written opposition from the recipient.

In this case, the identity of the person taking charge of the shipment is not recorded, as, as observed in the delivery receipt, only the details of the claiming party are listed, along with a signature that does not correspond to the signature of the claiming party. This is also acknowledged by ZELERIS, which states that the person collecting the shipment is identified, when it is evident that they are not, as their details

are not included in the receipt.

In this case, the SMS sent to the claiming party explicitly states that the shipment can only be delivered to the holder of the merger contract, which is also not done in this instance.

Finally, and as previously mentioned, the operations circular dated February 21, 2022 explicitly states that "in the event that it is not possible to identify the holder of the shipment, delivery will not be made." Therefore, in accordance with all the above, the allegation presented by ZELERIS cannot be taken into account.

2. ABSENCE OF TYPICITY, ILLEGALITY, AND CULPABILITY OF TELEFÓNICA-ZELERIS.

ZELERIS claims that the action cannot be typical insofar as the delivery was made to the address provided by TELEFÓNICA, and understands that a breach of confidentiality cannot be attributed to them since the data provided in the order is minimal and the third party has not had access to it.

However, this assertion cannot be taken into account as, despite ZELERIS stating that the personal data contained on the shipment label is minimal, it remains personal data of the claiming party, and the third party collecting the package does have access to it. In this case, it has been established that the label included the phone number of the claiming party.

ZELERIS continues to assert that it cannot be attributed to them that they did not adopt security measures, insisting that the data appearing on the label is the minimum necessary, and that the third party receiving the shipment does not have access to the delivery receipt, and therefore could not be considered as evidence.

In this regard, it has been established that ZELERIS did not follow the security measures that they had in place, having proceeded with the delivery of the shipment without verifying that the person collecting the shipment was the holder of the merger contract and the person who was supposed to collect it, thereby resulting in a breach of confidentiality, as their personal data, particularly the contact phone number, has been exposed to a third party.

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Furthermore, regarding the statement that the personal data collected on the shipping label should be the minimum necessary, this cannot be taken into account, as there are no minimum personal data requirements; rather, it concerns personal data of the claiming party in any case.

On the other hand, concerning the statement made about the delivery receipt, it should be noted that the receipt proves that the delivery was not made according to the conditions of the regulations and the measures implemented by ZELERIS, since the delivery was made to a different address than that of the claimant and was collected by a third party. It was not delivered to the actual recipient of the shipment, who is the holder of the merger contract and the claiming party, nor is the person who collected the shipment identified. The delivery of the shipment without verifying that the person collecting it was the holder of the merger contract, as stipulated in the instructions implemented by ZELERIS, has resulted in a loss of confidentiality, exposing the personal data of the claiming party to a third party.

ZELERIS acknowledges this when it states that the signature would not match the signature provided by the claiming party in their contract with TELEFONICA DE ESPAÑA because they are not the one collecting the shipment, claiming that the courier would have identified the person collecting the package; however, this document confirms that the person collecting the shipment is not identified on the receipt.

It should be remembered that the shipment was to be delivered to the holder of the merger, and according to ZELERIS's own circular, if the holder of the shipment cannot be identified, the delivery cannot be made.

Regarding the statement made by ZELERIS that it believes the conduct would not be unlawful, having acted in good faith and with an exclusive belief excluding culpability, it is necessary to consider what is stated in the ruling of the AN, SAN of June 27, 2024, rec. 102/2022: "It is well known that one can incur liability for the infringement we are examining both intentionally or fraudulently as well as through

carelessness, negligence, or even by mere non-observance (art. 28 of Law 40/2015, of October 1).” It is now appropriate to recall that, as the Supreme Court points out in the Judgment of January 23, 1998, “... although the culpability of the conduct must also be proven, it must be considered in relation to the assumption of the corresponding burden that ordinarily the volitional and cognitive elements necessary to appreciate it form part of the proven typical conduct, and that their exclusion requires evidence of the absence of such elements, or in its normative aspect, that the diligence required by the one claiming its non-existence has been employed; in summary, the mere invocation of the absence of fault is not sufficient for exculpation against a typically unlawful behavior.”

Therefore, it is up to ZELERIS to prove that it exercised the diligence that was required to exclude culpability, which, in this case, has not occurred, as it has been established that the package was delivered to a person other than the holder of the merger contract, resulting in a breach of confidentiality.

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Furthermore, the delivery of the shipment occurred without taking into account the measures communicated by ZELERIS to its employees, in that they did not ensure that the person receiving said shipment was the intended recipient.

Therefore, the allegation put forth by ZELERIS cannot be taken into account.

3: ON THE CRITERIA FOR GRADUATING THE SANCTION.

ZELERIS, in this allegation, wishes to express its disagreement with the aggravating factors outlined in the initiation agreement. Thus:

- in relation to the circumstance regarding the nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damages they have suffered (section a): in this case, the measures indicated in the circular dated February 21, 2022, as stated in document 1 attached to the response to the transfer of the complaint, would not have been followed.

At this point, ZELERIS states that this would be a unique and exceptional case that has not caused harm to the complaining party, and therefore, the sanction of 100,000 euros for the commission of two infringements would be disproportionate.

In relation to this circumstance, it should be noted that, upon making the delivery, the company's own measures that were in place were not taken into account, as provided in its written response to the transfer of the complaint, which allowed for a loss of confidentiality of the complaining party's data and a loss of control over their own data.

In any case, this Agency considers that the sanction is not disproportionate.

For all the above reasons, this allegation cannot be taken into account.

- In relation to the circumstance of intentionality/negligence in the infringement (section b). In this regard, the Supreme Court has understood that there is recklessness whenever a legal duty of care is disregarded, that is, when the infringer does not act with the required diligence. And in assessing the degree of diligence, special consideration must be given to the professionalism or lack thereof of the subject, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard.

[Judgment of the National Court of October 17, 2007 (rec. 63/2006)]

In relation to this circumstance, ZELERIS states:

a) ZELERIS does have adequate security measures in place according to the risk.

b) the applicable sectoral regulations were complied with in this case, as the person collecting the package identified themselves.

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- c) The claiming party was able to confirm and/or modify the delivery address because the first attempt was unsuccessful.
- d) If internal measures were adopted, as indicated in the letter addressed to this Agency dated April 27, 2023, which stated that internal operations for this type of delivery would be reinforced for all employees.
- e) It appears that ZELERIS had an error in the delivery address from the beginning, which is in no way attributable to ZELERIS.

In relation to these statements, it should be noted that they have already been addressed throughout this document, to the extent that the infringement attributed to ZELERIS is precisely that, during the delivery, its own implemented measures were not followed.

Additionally, it should be noted that the person who collected the package did not identify themselves, as they are not listed on the delivery receipt.

Regarding the error mentioned, it must be taken into account, as previously noted, that the delivery of the shipment was to be made to the holder of the merger contract, and not to any person present at the residence, who was not even identified; therefore, these statements made by ZELERIS cannot be taken into account.

Finally, regarding the issue that the claiming party did not confirm the delivery address, it is necessary to point out that the infringement attributed to ZELERIS is precisely that it did not follow its own instructions when proceeding with the delivery of the shipment without verifying that the recipient was indeed the holder of the merger contract.

- Regarding the aggravating circumstance related to the link between the infringer's activity and the processing of personal data (section b):

TELFÓNICA SERVICIOS INTEGRALES DE DISTRIBUCIÓN routinely and continuously carries out the processing of personal data. ZELERIS wishes to express its disagreement to the extent that it believes there has been no lack of security measures in the delivery.

This issue has also been addressed several times throughout the resolution proposal, as it has been precisely the failure to comply with the measures that ZELERIS has implemented for making deliveries that has not been taken into account in this case. These measures included, among others, that the employee responsible for the delivery is required to identify and verify the identity of all deliveries, and if it is not possible to identify the holder of the shipment, the delivery will not be made.

In this case, as already stated, there is no record in the file that the delivery was made to the holder of the merger contract, which is what had been agreed with the client for this delivery.

ZELERIS adds that this aggravating factor, in this case, is applied without taking into account that we are dealing with a specific and exceptional case, which means that any type of infringement that might be decided to impose on ZELERIS would always be considered.

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this aggravating factor, which it considers disproportionate and devoid of all sense, contravening the principles of justice and equity.

This Agency considers that this statement cannot be taken into account insofar as the development of ZELERIS's business activity requires continuous and large-scale processing of personal data of clients, which necessitates a greater diligence in the processing of personal data.

Finally, it should be noted that it is the legislator who provided for the possibility of using this

aggravating factor and that the Agency is limited to applying it.

On the other hand, ZELERIS believes that the following mitigating factors should be applied, resulting in a corresponding reduction of the amount:

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement.

ZELERIS considers that this mitigating factor should be applied to the extent that it has responded to all information requests from the Agency, in order to collaborate as much as possible with the investigative work of this Agency.

This allegation cannot be taken into account insofar as responding to the information requests sent from this Agency is an obligation of the data controller, as stated in the LOPDGDD.

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.

ZELERIS understands that, in this case, no type of benefit has been obtained from the commission of the alleged infringements. On the contrary, if the sanction were ultimately imposed, this party would incur an economic loss.

This allegation cannot be considered a mitigating factor, according to the ruling of the National Court, dated 05/05/2021, rec. 1437/2020, which states: "On the other hand, it considers that the absence of a prior infringement should be appreciated as a mitigating factor. Article 83.2 of the GDPR establishes that the following circumstances must be taken into account for the imposition of the administrative fine, among others, the circumstance 'e) any prior infringement committed by the controller or the processor.' It is an aggravating circumstance; the fact that the conditions for its application do not exist means that it cannot be taken into consideration, but it does not imply or allow, as the plaintiff intends, its application as a mitigating factor"; applied to the case under review, the lack of conditions for its application regarding art. 76.2.c) of the LOPDGDD, that is, obtaining benefits as a consequence of the infringement, does not allow its application as a mitigating factor."

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Thus, in accordance with the provisions of Article 83.1 of the GDPR, admitting the absence of benefits as a mitigating factor is not only contrary to the factual premises contemplated in Article 76.2.c), but also contrary to what is established in Article 83.2.k) of the GDPR and to the indicated principles.

Therefore, valuing the absence of benefits as a mitigating factor would nullify the deterrent effect of the fine, to the extent that it diminishes the effect of the circumstances that effectively influence its quantification, providing the controller with a benefit to which it is not entitled. It would be an artificial reduction of the sanction that could lead to the understanding that violating the regulation without obtaining benefits, financial or otherwise, would not produce a negative effect proportional to the seriousness of the infringing act.

In any case, the administrative fines established in the GDPR, in accordance with what is established in its Article 83.2, are imposed based on the circumstances of each individual case and it is not considered that the absence of benefits is an adequate and determining factor for assessing the seriousness of the infringing conduct. Only in the case that this absence of benefits is relevant for determining the degree of unlawfulness and culpability present in the specific infringing action can it be considered as a mitigating factor, in application of Article 83.2.k) of the GDPR, which refers to "any other aggravating or mitigating factor applicable to the circumstances of the case."

4: THE SANCTION IS DISPROPORTIONATE AND ARBITRARY.

In relation to this issue, ZELERIS points out that the GDPR and the LOPDGDD attribute to this Agency, as the supervisory authority, the responsibility to ensure compliance with data protection regulations by carrying out its investigative functions, and that, in this case, no investigation has taken place, and the motivation for the initiation of the sanctioning procedure would be based on the complaint filed and the document submitted by ZELERIS, assuming premises such as that the delivery

receipt with personal data was handed over to the person who received the package, when this would not have been the case.

In this regard, Article 47 of the LOPDGDD, referring to the "Functions and Powers of the Spanish Agency for Data Protection," establishes in its first section: "It is the responsibility of the Spanish Agency for Data Protection to supervise the application of this organic law and of Regulation (EU) 2016/679 and, in particular, to exercise the functions established in Article 57 and the powers provided for in Article 58 of the same regulation, in this organic law and in its implementing provisions."

Thus, Article 58 of the GDPR, referring to the "Powers," establishes, in its section 2:

"Each supervisory authority shall have all of the following corrective powers indicated below:

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d) to order the responsible party or data processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified timeframe;

(...)

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this section, depending on the circumstances of each particular case;

Furthermore, Article 64 of the LOPDGDD regarding "the initiation of the procedure and duration" establishes in its section 2:

"When the procedure aims to determine the possible existence of an infringement of the provisions of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, and of this organic law, it shall be initiated by an initiation agreement, adopted on its own initiative or as a result of a complaint, which shall be notified to the interested party.

If the procedure is based on a complaint filed with the Spanish Agency for Data Protection, prior to this, it will decide on its admission for processing, in accordance with the provisions of Article 65 of this organic law.

Once the complaint is admitted for processing, as well as in cases where the Spanish Agency for Data Protection acts on its own initiative, prior to the initiation agreement, there may be a phase of preliminary investigative actions, which will be governed by the provisions of Article 67 of this organic law."

Therefore, in accordance with what is stated in the previous paragraphs, among the functions attributed to this Agency is the possibility of initiating sanctioning procedures and imposing the corresponding fines and measures. Furthermore, the investigative activities may or may not be carried out, in accordance with the provisions of Article 64 of the LOPDGDD. Therefore, this allegation cannot be taken into account.

On the other hand, regarding the statement that the delivery note containing personal data was handed over to the person who received the package, when this was not the case, it is necessary to reiterate once again that, as previously indicated, in this sanctioning procedure, the fact that the delivery note was handed over to the person who collected the package was not questioned, but rather that it served to determine that the infringement would have been committed to the extent that it proves that the shipment was not delivered to the complaining party. In this case, ZELERIS is not accused of a lack of confidentiality for handing over the delivery note to a third party, but for delivering a package along with a label that contained the personal data of the complaining party.

Regarding the breach of the principle of proportionality, it is necessary to state that the GDPR expressly provides for the possibility of gradation, through the provision of fines that can be modulated, taking into account a series of effective, proportionate, and deterrent circumstances of each individual case.

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(article 83.1 and 2 GDPR), general conditions for the imposition of administrative fines that have been analyzed by this Agency, to which the criteria for graduation provided in the LOPDGDD must be added.

It should be noted that the agreed administrative fine will be effective because it will lead the company to implement the technical and organizational measures that guarantee the rights and freedoms of the data subjects, taking into account the criticality of the processing.

It is also proportional to the identified violation, in particular to its severity, the circle of affected individuals, and the risks incurred, as well as the financial situation of the company.

Lastly, it is deterrent. A deterrent fine is one that has a genuine deterrent effect. In this regard, the Judgment of the CJEU, dated June 13, 2013, Versalis Spa/Commission, C-511/11, ECLI:EU:C:2013:386, states:

“94. Regarding, first of all, the reference to the Showa Denko/Commission judgment, previously cited, it should be noted that Versalis interprets it incorrectly. Indeed, the Court of Justice, by stating in paragraph 23 of that judgment that the deterrent factor is assessed taking into account a multitude of elements and not only the particular situation of the company in question, was referring to points 53 to 55 of the conclusions presented in that case by Advocate General Geelhoed, who essentially pointed out that the deterrent multiplier coefficient may aim not only at a ‘general deterrence,’ defined as an action to disincentivize all companies, in general, from committing the infringement in question, but also at a ‘specific deterrence,’ consisting of deterring the specific defendant from infringing the rules again in the future. Therefore, the Court of Justice only confirmed, in that judgment, that the Commission was not obliged to limit its assessment to factors related solely to the particular situation of the company in question.”

“102. According to established case law, the objective of the deterrent multiplier factor and the consideration, in this context, of the size and overall resources of the company in question lies in the desired impact on the said company, as the sanction must not be insignificant, especially in relation to the financial capacity of the company (in this sense, see, in particular, the judgment of June 17, 2010, Lafarge/Commission, C-413/08 P, Rec. p. I-5361, paragraph 104, and the order of February 7, 2012, Total and Elf Aquitaine/Commission, C-421/11 P, paragraph 82).”

The Judgment dated May 11, 2006, issued in the cassation appeal 7133/2003 establishes that: “It must also be taken into account that one of the guiding criteria for the application of this principle of administrative sanctioning regime (criterion included under the heading of ‘principle of proportionality’ in paragraph 2 of article 131 of the aforementioned Law 30/1992) is that the imposition of monetary penalties should not result in the commission of the specified infringements being more...

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"beneficial for the offender than compliance with the violated norms."

It is also important to consider the jurisprudence resulting from the Judgment of the Third Chamber of the Supreme Court, issued on May 27, 2003 (rec. 3725/1999), which states: "Proportionality, specifically belonging to the realm of sanctions, constitutes one of the principles governing Administrative Sanctioning Law, and represents a control instrument for the exercise of the sanctioning power by the Administration, even within the margins that the applicable norm initially indicates for such exercise. It certainly implies a concept that is difficult to determine a priori, but which tends to adjust the sanction by establishing its specific gradation within the indicated possible margins, to the severity of the act constituting the infringement, both in its aspect of unlawfulness and culpability, weighing in its entirety the objective and subjective circumstances that integrate the factual

presumption subject to sanction - and, in particular, as results from Article 131.3 of the LRJ and PAC, the intent or repetition, the nature of the damages caused, and recidivism - (SSTS July 19, 1996, February 2, 1998, and December 20, 1999, among many others).

Furthermore, when ZELERIS points out that the initiation agreement does not justify the calculation of the amount of the sanctions, without an explanation and merely mentioning that there are aggravating factors, and that this would violate the principle of proportionality, it should be noted that this is not the case, as it specifies that the sanction for the infringement of Article 5.1.f) of the GDPR amounts to 70,000 euros, and the sanction for the infringement of Article 32 of the GDPR is 30,000 euros, and it clearly explains the application of concurrent circumstances, as can be verified in the initiation agreement and in this document.

Therefore, this allegation cannot be taken into account.

5. ADOPTION OF MEASURES.

ZELERIS expresses its disagreement with the imposition of the adoption of measures in the event that the alleged infringements are confirmed, since, as has been explained throughout the written allegations to the initiation agreement, ZELERIS would have reasonably explained its correct course of action based on the data it had, following a strict operational procedure and in compliance with both sectoral regulations and data protection laws.

Regarding this issue, as previously noted, one of the functions of this Agency is the possibility of imposing corrective measures. The measures outlined in the initiation agreement refer to the possibility of ordering ZELERIS to demonstrate within 6 months the adoption of appropriate measures in accordance with the GDPR, so that its delivery personnel do not violate the established protocols and do not make deliveries without reliably verifying the identity of the person to whom the package is delivered.

ZELERIS has stated that internal measures would have been adopted to reinforce internal operations for this type of delivery to all employees, but these have not been substantiated, so this allegation cannot be taken into account, and the proposal to order the application of the measures in the resolution that concludes this sanctioning procedure is maintained, without prejudice to the possibility of their presentation throughout this sanctioning file.

IV

Response to the allegations regarding the resolution proposal of the sanctioning procedure

In relation to the allegations made regarding the resolution proposal of this sanctioning procedure, a response is provided according to the order presented by ZELERIS:

I. ON THE FACTS THAT MOTIVATE THE INITIATION OF THIS SANCTIONING FILE.

First. Non-existence of the commission of the infringement. Disagreement with the resolution proposal.

a) On the due diligence in deliveries.

This issue has already been addressed in the allegations to the initiation agreement, in section 1 referred to as "non-existence of the commission of an infringement," to which we refer.

b) On security measures, updated operations, and reinforcement for employees and suppliers.

In this regard, ZELERIS wishes to state that it has appropriate technical and organizational measures concerning the processing of personal data carried out, since this Agency has proposed the filing of the infringement of Article 32 of the GDPR.

Regarding this issue, it is necessary to highlight that the infringement attributed to ZELERIS is an infringement of Article 5.1.f) of the GDPR, which also requires the application of appropriate technical and organizational measures to ensure adequate security of personal data, including protection against unauthorized or unlawful processing.

Furthermore, it wishes to highlight the following measures that have been implemented:

- i) the continuous updating of the internal operations carried out by the security and operations team, which is communicated to all employees through circulars and is attached to the written allegations to the resolution proposal.
- ii) inclusion of clauses in the contracts for the distribution of parcels and messaging with suppliers.
- iii) once the incident was detected, ZELERIS informed the collaborating company that had performed this service to identify the worker who carried out this service and reprimand them.

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ZELERIS wants to highlight that this action would demonstrate that it would have acted with due diligence.

The issue regarding whether ZELERIS's actions would demonstrate that it acted with due diligence has already been addressed, and it should be added that, despite these measures, the delivery of the shipment was carried out without taking into account the implemented measures.

c) obligation of means and not of results.

With this statement, ZELERIS asserts that, with the proposed resolution, this Agency would be imposing an obligation of results, and that the security measures must be infallible, based on the outcome of operations that workers and couriers must follow beyond the requirements established in Articles 32 and 25 of the GDPR.

However, in relation to this issue, it is necessary to refer to the SAN of October 29, 2024, rec. 1824/2021, which states that

“...it should be emphasized, in relation to technical and organizational measures, that we are not dealing with a merely formal requirement, but a material one. In this sense, and in line with what has been stated above, as noted in the STS of February 15, 2022 (Rec. 7359/2020) “It is not enough to design the necessary technical and organizational means; their correct implementation and appropriate use are also necessary, so that one will also be liable for the lack of diligence in their use, understood as reasonable diligence considering the circumstances of the case,” which does not imply that a result obligation is required.”

Furthermore, it is worth citing the Constitutional Court ruling 94/1998, of May 4, in which the Constitutional Court indicated that we are dealing with a fundamental right to data protection, which guarantees individuals control over their data, any personal data, and its use and destination, to prevent the illicit trafficking of such data or harm to the dignity and rights of the affected parties; thus, the right to data protection is configured as a citizen's power to oppose the use of certain personal data for purposes other than those that justified its acquisition.

In this sense, the risk-based approach and the flexible model to the risk imposed by the GDPR—starting from the dual configuration of security as a principle related to processing and an obligation for the data controller or processor—does not impose infallibility of the measures in any case, but rather their constant adequacy to the risk.

Thus, in the case at hand, it has been established that the delivery of the shipment was carried out without taking into account its own instructions since, as stated in the SMS sent to the claimant, the shipment could only be collected by the contract holder, and throughout this file, it has been confirmed that the delivery was made without verifying who collected the shipment, which constitutes a clear breach of the measures contained in the aforementioned instructions, which were not followed diligently by ZELERIS.

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Therefore, this allegation should be rejected.

d) volume of deliveries.

ZELERIS wishes to state that, since the year 1999, when the company was established, it has not had any complaints regarding privacy, despite the fact that the vast majority of its shipments are to individuals.

This Agency wishes to state that, in the present procedure, it has been established that there has been a violation of Article 5.1.f) of the GDPR, without the fact that this is the first infringement attributed to it in data protection being a reason for consideration.

2. On the inclusion of the contact phone number on the label.

ZELERIS presents a series of reasons why it considers it necessary to include the phone number on the package label. However, what is being evaluated in this file and the facts constituting the infringement is that there has been a loss of confidentiality, to the extent that an unauthorized person has had access to the personal data of the claimant, which they should not know, due to an improper action by ZELERIS, that is, as a consequence of delivering a package to an unauthorized third party, and without verifying their identity, at an incorrect address, in addition to the fact that its internal protocol clearly indicates that this cannot be done.

It also states that the events that led to the opening of the sanctioning procedure occurred in 2022, and it considers that the risks existing in that year are no longer the same as those currently, and adds that it makes this statement because it understands that the sensitivity of having a personal data exposed is not the same as it is today.

In relation to these statements, it should be noted that the violation of Article 5.1.f) of the GDPR in the case at hand, the loss of confidentiality occurs after the rules that ZELERIS already had in place were breached, and it is, therefore, undeniable and has been established throughout the sanctioning procedure, as personal data of the claimant has been exposed to third parties; therefore, this allegation should be rejected.

Moreover, the GDPR has been fully applicable since May 2018, and since that date, data controllers must comply with the principle of confidentiality, without the system of guarantees provided by the GDPR being weakened by a supposed "lack of awareness."

On the other hand, ZELERIS presents a list of measures it has been implementing, among which it mentions:

i) implemented: inclusion of (...).

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ii) in the process of implementation:

-(...).

-(...).

In relation to these statements, this Agency wishes to point out that these measures have been adopted and communicated to this Agency in the allegations to the proposed resolution on January 16, 2025, which means that they have been adopted or are in the process of implementation after the initiation of the sanctioning procedure, whose initiation agreement was notified on February 12, 2024. Therefore, for all intents and purposes, the infringement has occurred. A different issue is whether, in light of the measures adopted by the respondent party, this Agency should order measures under Article 58.2.d) of the GDPR.

II. ON THE LEGAL GROUNDS.

First. On the alleged infringement committed by ZELERIS: absence of typicity, unlawfulness, and culpability.

In relation to this allegation, it should be noted that it has already been addressed in section 2 of the response to the allegations to the initiation agreement, to which we refer, and therefore, this allegation should be rejected.

Second. Breach of the principle of proportionality in sanctions.

The reasons provided by ZELERIS for considering that the principle of proportionality is violated are as follows:

i) this is the first sanctioning file since 1999.

ii) the proportion of the volume of shipments in one year and the number of complaints for violating privacy shows that the security measures implemented are effective.

iii) the data exposed has affected only one person, and it occurred at (...).

iv) ZELERIS has adopted the necessary measures to reduce the risk of data exposure in the event of

any incident.

Regarding the breach of the principle of proportionality, it should be noted that it was addressed in the response to the allegations to the initiation agreement, in section 4, to which we refer, so this allegation cannot be taken into account.

Third. On the criteria for the graduation of the sanction.

ZELERIS expresses its disagreement with the application of the following aggravating factors.

i) The nature, severity, and duration of the infringement, in which they reiterate the allegations made to the initiation agreement, and additionally request this Agency to assess all circumstances presented, as it concerns a specific and isolated error, in which no harm would have been caused to the complainant, and that the personal data had minimal dissemination.

In relation to these statements, it should be noted that they have already been analyzed in the response to the allegations to the initiation agreement, section 3, to which we refer.

However, regarding the statement that no harm would have been caused to the complainant and that the personal data had minimal dissemination, it is important to point out that it cannot be asserted that the complainant has not suffered any harm, to the extent that the shipment intended for them never arrived, and furthermore, the fact that the dissemination of their personal data was "minimal," as ZELERIS claims, cannot be taken into consideration, given that a breach of confidentiality occurred, as personal data was provided to a neighbor with whom, according to the complainant, they have a poor relationship. Therefore, this allegation cannot be taken into account.

ii) Intentionality/negligence. This issue has already been addressed in the response to the allegations to the initiation agreement, section 3, to which we refer, and thus this allegation should be dismissed.

iii) The involvement of the infringer's activity in the processing of personal data.

In relation to this aggravating factor, it should be noted that it has already been addressed in the responses to the allegations to the initiation agreement, section 3, to which we refer.

On the other hand, ZELERIS states that, in accordance with the Guidelines on the application and imposition of administrative fines for the purposes of Regulation 2016/679, adopted by the Article 29 Working Party, the factors provided for in Article 83.2 of the GDPR should be evaluated in a combined manner, so that it should be carried out taking into account the number of data subjects along with the possible impact on them. It adds that in this same sense, Recital 75 of the GDPR would express itself. In relation to this issue, ZELERIS should remember that Article 83 of the GDPR, concerning the General Conditions for the imposition of administrative fines, in its paragraph 5 establishes:

"5. Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

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a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; That is to say, infringements affecting Article 5 of the GDPR, as is the case here, may be sanctioned with an administrative fine of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year. In the present case, the percentage is 0.017, and considering that the aggravating factors have been duly assessed, this allegation must be rejected.

On the other hand, ZELERIS believes that the following mitigating factors should have been taken into account:

a) degree of cooperation with the supervisory authority.

b) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.

These statements have already been addressed in the response to the allegations regarding the initiation agreement, in section 3, to which we refer, proceeding to reject this allegation.

Integrity and confidentiality

Article 5.1.f) "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by means of appropriate technical or organizational measures ('integrity and confidentiality')."

In this case, it is noted that the personal data of the complainant, especially their contact phone number, which does not need to be known by their neighbor, has been improperly exposed to a third party, in that the personal data of the complainant appeared on the label of the package to be delivered to the complainant (name, surname, address, and phone number).

It should be noted that the label contained an error in the letter of the floor to which the delivery was to be made, and that this delivery was to be made solely and exclusively to the holder of the fusion line, who is the complainant, a circumstance that did not occur, and the delivery was made to another person living in the same building as the complainant.

Thus, since the package was delivered to a person who was not the intended recipient of the shipment or the holder of the fusion contract, that is, the complainant,

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it has constituted a violation of the confidentiality principle of the personal data of the complainant.

Therefore, in accordance with the evidence available at this moment in the resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to ZELERIS for violation of Article 5.1.f) of the GDPR.

IV

Classification and qualification of the infringement of Article 5.1.f) of the GDPR

The aforementioned infringement of Article 5.1.f) of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 72 "Very serious infringements" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall be subject to a three-year limitation period:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

VI

Sanction for the infringement of Article 5.1.f) of the GDPR

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for infringements of this

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Regulation indicated in sections 4, 9, and 6 shall be effective, proportionate, and dissuasive in each individual case.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, section 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damages they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damages suffered by the affected parties;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have applied under Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, section 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factors applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD states:

“1. The sanctions provided for in sections 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in section 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any affected party.”

In the present case, considering the severity of the infringement, especially taking into account the consequences that its commission causes to the affected parties, the imposition of a fine is warranted, in addition to the adoption of measures.

For the purpose of deciding on the imposition of an administrative fine and its amount, it is considered appropriate to graduate the sanction to be imposed according to the following circumstances, as contemplated in the aforementioned provisions.

- The nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damages they have suffered (section a): the personal data of the complainant, particularly their phone number, has been transferred to an unauthorized third party since a package containing the aforementioned information was delivered to someone who should not have received it.

In addition to the above, it should be noted that the complainant did not receive the requested device as evidenced by the documentation in the file.

- Intentionality/Negligence in the infringement (section b). In this regard, the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant is of

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Given the constant and abundant handling of personal data, it must be emphasized the rigor and exquisite care required to comply with the legal provisions in this regard.

[Judgment of the National Court of 17/10/2007 (rec. 63/2006)].

In this case, a lack of diligence has occurred, as the instructions of the company itself were not followed at the time of delivery.

Furthermore, it is considered appropriate to adjust the sanction to be imposed according to the following criteria established in section 2 of article 76 “Sanctions and corrective measures” of the LOPDGDD:

As aggravating factors:

- The connection of the infringer's activity with the processing of personal data (section b): ZELERIS regularly and continuously carries out the processing of personal data, as ZELERIS, as a consequence of its business activity (transport and logistics service), routinely and continuously processes personal data of a large number of data subjects. The performance of goods transportation activities, which is its main activity, necessarily involves operations of personal data processing. Thus, the infringing actions occur within the framework of personal data processing that ZELERIS routinely conducts in its business and related to it.

The balance of the circumstances contemplated in article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of article 5.1.f of the GDPR, allows for the imposition of a sanction of €70,000 (seventy thousand euros).

VII

Security of processing

Article 32 “Security of processing” of the GDPR establishes:

“1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;

- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;

- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.
2. In assessing the adequacy of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.
3. Adherence to an approved code of conduct pursuant to article 40 or to an approved certification mechanism pursuant to article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.
4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law.”
- Upon reviewing the allegations made by the responding party, and in light of them, reviewing the documentation in the administrative file and that provided by the responding party, it is evident that all the technical and organizational security measures whose absence has been proven, directly enabling the personal data breach, have not resulted in a violation, in this specific case, of article 32 of the GDPR as the absence of other independent technical and organizational security measures unrelated to the personal data breach has not been demonstrated.

VIII

Corrective measures

In accordance with the provisions of the aforementioned article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”, ZELERIS is required to notify this Agency within 6 months of the adoption of the following measures:

- To demonstrate within 6 months the adoption of appropriate technical and organizational measures in accordance with the GDPR, so that its delivery personnel do not violate the established protocols and do not deliver a package to an unauthorized third party, nor make deliveries without reliably verifying the identity of the person to whom the package is delivered.

The imposition of these measures is compatible with the sanction consisting of an administrative fine, as provided in article 83.2 of the GDPR.

It is warned that failure to comply with the order of measures from this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

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Furthermore, it is reminded that neither the acknowledgment of the infringement committed, nor, if applicable, the voluntary payment of the proposed amounts, exempts the obligation to demonstrate compliance with the proposed corrective measures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE

on

TELEFÓNICA SERVICIOS INTEGRALES DE DISTRIBUCIÓN, S.A., with NIF A82261280, for an infringement of Article 5.1.f) of the GDPR classified under Article 83.5 of the GDPR, a fine of seventy thousand euros (70,000 euros).

TO FILE against TELEFÓNICA SERVICIOS INTEGRALES DE DISTRIBUCIÓN, S.A., with NIF A82261280, the infringement of Article 32 of the GDPR, classified under Article 83.4 of the GDPR.
SECOND: TO ORDER

TELEFÓNICA SERVICIOS INTEGRALES DE DISTRIBUCIÓN, S.A., with NIF A82261280, that pursuant to Article 58.2.d) of the GDPR, within 6 months from the date this resolution becomes final and enforceable, to adopt the appropriate technical and organizational measures in accordance with the GDPR, so that its delivery personnel do not violate the established protocols and do not deliver a package to an unauthorized third party, nor make deliveries without reliably verifying the identity of the person to whom the package is delivered.

THIRD: TO NOTIFY this resolution to TELEFÓNICA SERVICIOS INTEGRALES DE DISTRIBUCIÓN, S.A.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must fulfill the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN:

ES00-0000-0000-0000-0000-0000, opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the

Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

938-101224

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy of the Presidency and Deputy Presidency

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